

26CV-02160

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03640

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Demurrer to Complaint

Defendants' general demurrer to the complaint on the ground the complaint fails to allege proper notice is OVERRULED. A demurrer challenges only defects appearing on the face of the pleading or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Code Civ. Proc., § 430.30.) The complaint alleges all the necessary facts to constitute a cause of action for unlawful detainer against Defendants based on a three-day notice to pay rent or quit. (Code Civ. Proc., §§ 1161(2), 1166.)

Defendants' general demurrer to the complaint on the ground notice is defective under Civil Code section 1946.2, subdivision (c) is OVERRULED. The complaint asserts a cause of action for unlawful detainer under Code of Civil Procedure section 1161(2), not section 1161(3) as argued by Defendants.

Defendants' general demurrer to the complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action is OVERRULED for the reasons stated above.

Defendants' special demurrer to the complaint for uncertainty is OVERRULED. The complaint alleges all the necessary facts to constitute a cause of action for unlawful detainer against defendants and is not so vague and ambiguous that the responding party "cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed at [them]." (*Khoury v. Mally's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

Defendants shall file their answer within five days of notice of entry of order. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

Plaintiff is directed to prepare and submit a written order for the Court's signature as required by the California Rules of Court and serve notice of entry of order on Defendants.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, July 29, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
25CV-01042	JPMorgan Chase Bank, N.A. vs. Mimi Carter
Court Trial	
Appearance required.	
25CV-01291	Bank of America, N.A. vs. Alejandro Bueno
Court Trial	
Appearance required.	